AN ISO 9001:2015 CERTIFIED COMPANY

ERIEZON

AGREEMENT FOR DISTRIBUTORSHIP



ERIEZON CROP SCIENCE INDIA PVT.LTD.

ERIEZON CROP SCIENCE INDIA PVT.LTD.

DISTRIBUTORSHIP AGREEMENT

S. No.

Date.....

To,

NAME OF FIRM :_____

BUSINESS LOCATION :_____

ADDRESS :_____

:_____

CONTACT NUMBERS:

(A) OFFICE. :_____

(B) MOBILE. :_____

© RESIDENCE :_____

(D) FAX. :_____

(E) E-MAIL. :_____

Rubber Stamp

DISTRIBUTORSHIP AGREEMENT

This Distributorship Agreement is made and executed on the_____ _____(Month)_____(Year) by and between **ERIEZON CROP SCIENCE INDIA PVT. LTD.** a firm having its Registered Office at C-167, Alpha-1, Greater Noida Gautam Buddh Nagar Uttar Pradesh, India-201310 and Corporate Office Plot No. 30, 5th Floor, Tech Centre Phase-1, Rajiv Gandi Infotech Park MIDC, Hinjewadi, Pune-Maharashtra - 411057
Represented by_____ its hereinafter referred as COMPANY which expression shall mean and include its successors, executors and assigns of the FIRST PART

and

M/s._____

_____

_____ Represented by Mrs/Mr/M/s._____who is the authorized Signatory of the firm hereinafter referred as "wholesaler" or "DISTRIBUTOR" (which expression shall mean and include its successors, executors and assigns) of the SECOND PART

WHERE AS ERIEZON CROP SCIENCE INDIA PVT. LTD. carrying out business in Research & Development, Production, Processing and Marketing of all major agricultural crops with high quality of Pesticides across the country.

AND WHERE AS the above mentioned firm (SECOND PART) is in the field of Marketing for various kinds of agriculture Pesticides in the market Products.

AND WHEREAS the party of the FIRST PART is willing to appoint party of SECOND PART as its non-exclusive Distributor/Wholesaler to store, distribute and sale the Pesticides in accordance with Terms and Conditions agreed as hereunder.

AND WHERE/AS this agreement is to be construed as Appointment letter issued by the COMPANY to DISTRIBUTOR or WHOLE SELLER and therefore the party of SECOND PART are addressed or referred as "YOU", "YOUR" or YOURSELVES" as may be required in the context.

The following are the terms and conditions for this agreement :

1) Product/Stocks/Delivery:

a) This agreement is in respect of agricultural Pesticides product & marketed by the company.

b) You will undertake to sell company products in the original packing and with the original labels affixed and not to tamper packings any point of time.

c) The company will deliver the products at the address specified by you Distributors in form.

2) Not An Agency :

a) This appointment is not intended to and in fact does not designate you as your agent in any manner whatsoever and, unless, expressly authorized by us in writing in that behalf, you are not authorized to represent us to create any liability on our behalf or to make any representation to any third party on your behalf.

b) It is clearly understand that the relationship between yourselves and COMPANY shall be of "Principal to Principal"

3) Terms of Payments :

a) You will make payment to us for the products purchased by you in accordance with the terms of payment stated in your invoices.

b) The terms of payment are understood to be cash against delivery in the normal course of business.

c) For credit terms, which are agreed by us and are stated in any invoice, and if the payments are not made within the period stipulated for the payments in the said invoice we shall, without prejudice to any of our other rights and remedies including the right to terminate this authorized Distributor/Dealer Agreement, be entitled to charge interest on the amount so due at 18% per annum from the date of expiry of the period of credit until the payment, It is clarified that the obligation to pay interest` does not permit you delay payment beyond the stipulated period of credit.

d) **Cash payment should not be made under any circumstance.**

4) Sales Promotion

a) Apart from the adequate stock keeping it is clearly understood that you shall engage yourselves in active selling, including participation in local and/or regional agricultural fairs and exhibitions and in general, contribute to the best of your ability to the promotion of sales of the company's products. You shall do everything possible to promote the closest co-operation with our representatives and us.

5) Territory

a) The area of your operation will be mainly

_____

_____

However t, his area will not be exclusively assigned to you, and we shall be free to sell the Products directly Distributors/Dealers, with in the Territory.

b) **We hereby reserve our right and shall be entitled to :**

I) Appoint any other person as our Agent, Distributor, Dealer, Distributors or Representative, for the sale and distribution of the said Products, and

II) Sell the Products direct to any customer whatsoever.

c) By virtue of being a non exclusive arrangement, you are not entitled to any kind of compensation or commission with respect to sales made by us to any other customers.

6) Terms And Terminations

a) Your appointment as an authorized Distributor/ Dealer shall commence with the effect from date_____. The above appointment is terminable at not less than one month written notice on either side, provided, however that we reserve the right to terminate this agreement fort with without notice in the event of your committing a breach of any of the terms and conditions, Such termination be without prejudice to any other remedy which we may have against you and you shall not be entitled to any compensation or payment of any kind whatsoever on account thereof nor shall we be liable to take back any products sold by us to you.

7) Legal Requirements:

a) It will be your responsibility to apply for and to maintain in full force and effect all applicable licenses and permission under the local / Municipal / state / Central Governments laws and rules in force to possess, store, deal in and dispose of the products. You also agree to abide all laws of the land in for from time to time.

8) Address

a) We note that your business address is located at address as shown under clause 1 to Exhibit attached to and forming part of this Agreement.

b) All letters and other communications sent us to you at this address will be deemed to have been received by you in normal course of transmission. This address will continue to be valid until a new address is notified to us in writing.

9) Purchase Price

a) You shall purchase the products from us at prices indicated to you in our price list from time to time. Such prices will be subject to change from time to time and will be those applicable at the time of delivery.

10) Payments Procedure / Dishonoring of Cheques

Payments against supplies made to you and due to us will be made by you through RTGS / NEFT /Demand Drafts payable at the place designated by us or through electronic transfer. In exceptional circumstance where we agree to accept cheques, the same have to be honored at all times. The company views cheque dishonoring as a very serious and unhealthy act. In case of any cheques being dishonored, the company reserves the right to terminate and cancel your appointment without any prior notice or intimation whatsoever apart from imposing a penalty that may be applicable from time to time. The company also reserves its right to take legal action against you.

11) Security Deposit/Cheques

a) You will place with us an amount of Rs._____

_____

Rs._____

_____

_____) as Security Deposit to secure the due performance by you of the terms and conditions of this agreement. The said deposit shall stand forfeited in the event of your committing any breach of any of the terms and conditions of this agreement, including non payment of our invoice.

b) In consideration of your placing with us the aforesaid amount as Security Deposit, we shall allow you interest @ 12% per annum. Minimum period of Security Deposit should be with us at least for six months for interest payment.

c) In addition to above security deposit, you will provide us further security by way of three blank CTS, At par payable cheques drawn in favour of the **ERIEZON CROP SCIENCE INDIA PVT. LTD.** duly signed by you.

These cheques may be presented for payment in the event of overdue receivable and when you fail to repay the dues in time. In such case a notice will be issued to you with all details of over due amount by giving time to repay the due amounts. Even than if the amount of overdue mentioned in the notice is not repaid, the below mentioned cheques will be presented in the concerned bank by filling the amount mentioned in the notice issued to you **and the same shall be deemed to have been issued in discharge of legally enforceable liability.**

The details of the blank cheques issued at the time of execution of this agreement are mentioned below.

I) Cheque

No:_____

_____

Bank_____

_____

_____

The above said blank cheques issued assecurity be replaced every year on 1st day of October each year with new cheques. On issue of new cheques, old cheques will be cancelled & returned back to you.

12) Sales Returns

a) The products once sold and supplied, shall not be accepted back by us under any circumstances and we shall, therefore, intra alias, not be responsible to take back any expired / soiled / damaged stocks without any prior written approval from Head Office.

13) Credit Limits

a) The company will intimate you on the credit limit that you can avail based on the security deposit you have kept with the company; the company's policy may change from time to time based on your performance. Any extra credit limit than the one intimated to you by the sale manager's recommendation Orders placed, which if executed, would result in your exceeding the credit limit will not be processed.

b) The Distributor/Dealer shall not do any cash transaction with the Field staff of the Company if any cash transaction is entered into by the Distributor/Dealer shall not hold the company liable for any loss suffered by them and the Company will not entertain any claim from the Distributor/Dealer in this regard.

14) Records

a) You will agree for proper records of the stocks of company's products and these records will open for inspection to our representative as and when required.

b) In case of any change in status of your firm from proprietorship to partnership or vice versa it should be communicated to us immediately for updating our records. The decision to continue the Distributorship/Dealership Agreement with the new entity will be solely of the Company.

15) Supercession of other Agreements

This letter of appointment shall superced / cancel and replace all other agreements and undertakings between us regarding the subject matter of this letter. However, the status of the sales transactions and liabilities, if any, as on date of this agreement will continue to be binding on you in all respects. The above clause has to be read in consonance with Clause No. 11 of this agreement.

16) Arbitration

In the event of any difference or dispute between us arising out of, in relation to, in connection with, or touching upon, the subject matter of this agreement, including any dispute or difference arising after the termination of this agreement, including the interpretation of the terms and conditions of any invoice under which the Products will be purchased by you during or after termination of this agreement, the same shall be referred to arbitration in accordance with the rules and procedures prescribed in this regard. The Indian Arbitration Act, 1940 shall govern the Arbitration proceedings.

17) Force Majure

The Company shall incur no legal liability whatsoever if at any time it is unable to supply the whole OR any part of the goods for reason beyond its control including acts of God, Acts of State Government orders or restrictions, war like conditions, hostilities etc. In such cases the Company shall be the sole Judge to decide and the same will be binding on you.

18) Jurisdiction

This agreement is subject to Gautam Buddh Nagar Jurisdiction. We are forwarding this agreement to you. Kindly have it signed by a person duly authorized to sign it on behalf of you and stamp it at the place indicated. Please indicate the names of all your partners at thefoot here to and return it to us. On accepting the same we will return to you a duplicate thereof duly signed. Until notified by all the partners whose names are stated beside their signature, we shall not be obliged to take cognizance of any change in the constitution of your firm or trading style.

19) You shall provide all the details duly filled in & Signed

In witness where of the Parties here in has set their hands on the day and year mentioned above.

For **ERIEZON CROP SCIENCE INDIA PVT. LTD.**

Authorized Signatory

Name :

Designation :

_____

(Signature and Seal of the Distributor)

Witness

1 Full Name, Address & Signature

Signature :_____

Name : _____

Address :_____

_____

_____

2 Full Name, Address & Signature

Signature :_____

Name : _____

Address :_____

_____

_____

Partners, if any

1 Signature :_____

Name : _____

2 Signature :_____

Name : _____

3 Signature :_____

Name : _____

4 Signature :_____

Name : _____

5 Signature :_____

Name : _____

EXHIBIT

1). Please fill up the following details and return to us along with the agreement.

Name of the Distributor/Dealer :		
Name of the Key person :		
Name of the Authorised Person & their specimen Signature	Name	Specimen Signature
Address of the Distributor/Dealer:_____		
Pin Code :		
District :		
State :		
STD Code :	Telephone No :	
Office :	Residence :	
Fax No :	Mobile No :	
E-mail Address :		
GST Registration No :		
Pesticides License No :		
PAN of the Firm / Personal :		
Name of the transporters preferred :		

2) Documents :

a) You shall at the time of entering into the agreement or immediately submit us such documents are may be requested for by us like copy of Partnership Deed, Profit and loss Account and balance sheet for prior year, name of your bankers etc. You shall also provide the following documents along with the agreement.

I) Insecticides License No :

II) Goods & Service tax Registration No

III) Permanent Account Number (PAN) of firm/ Partner's/Proprietor

IV) Two Passport size recent Photographs of Managing Partner/Partners/Proprietor, as the case may be

V) Residence Address Proof

VI) Office / Shop Address Proof

VII) I.D. Proof

b) You also hereby undertake to keep all the licenses/permissions as per the law renewed well on time.

EXHIBIT

3) Particulars of Bank Transactions :

S.No.	Name of the Bank	Branch	Type of Account Current/SB	Account No.

4) Details of companies Distributorship/Preferred Dealership and turnover of the companies. (if more than three companies are handled the details may be furnished in a separate sheet.)

S.No.	Year	Name of the Company	Turnover in lakhs

5) Annual Total Turnover on 'Pesticides' for the last three years.

S.No.	Year	Turnover

6) Application is forwarded fo :

7) On appoint us as Distributor/ Dealers :
The likely turnover expected (in laks)

8) Any suggestions to maximize our sales in your area

_____

_____

9) Total No. of sub dealers deal with :_____

_____

10) Area of operation : _____

_____

Offical Use Only :

1. Name of the Marketing Person :

2. Designation :

3. Head Quarters :

4. Rep's Opinion :

5. He may be appointed as Distributor/PD/for the area_____

and I shall be responsible for satisfactory completion of all the transactions with this Distributor/PD.

Signature of Marketing Representative

Recommended By: ZM / SRM / RM / AM

Office Use Only :

Approval

Approved by

ERIEZON



ERIEZON CROP SCIENCE INDIA PVT.LTD.

Plot No. 30, 5th Floor, Tech Centre Phase-1, Rajiv Gandi Infotech Park
MIDC, Hinjewadi, Pune-Maharashtra - 411057

Customer Care : 020-67320455 E-mail : customercare@eriezon.com
Web : www.eriezon.com